



Code: KL
Adopted: 7/21/21

Public Complaints**

Parents, staff members, and students, and patrons of the public charter school are encouraged to make their complaints known to the public charter school and to afford the public charter school an opportunity to review those concerns and respond to them. Complaints about instructional or learning materials, staff members, discipline, alleged violation of applicable state standards or academic content standards, or retaliation against a student who in good faith reported information that the student believes is evidence of violation of state or federal law, rule or regulation, should approach the involved employee and, if possible, resolve the complaint at this level.

An individual or organization may petition the public charter school with complaints that the public charter school is violating or has violated provisions of restraint or seclusion in Oregon Revised Statute (ORS) 339.285 - 339.303 or Oregon Administrative Rule (OAR) 581-021-0550 - 581-021-0570 (Restraint or Seclusion).

The complainant must follow the complaint procedure as outlined in administrative regulation KL-AR - Public Complaint Procedure.

Complaints about Board policy or administrative regulations should be referred directly to the administrator/principal.

Complaints about the administrator/principal should be referred to the Board chair on behalf of the Board (See KL-AR – Public Complaint Procedure).

Complaints against the Board as a whole or against an individual Board member should be referred to the Board chair on behalf of the Board (See KL-AR – Public Complaint Procedure).

Complaints against the Board chair should be referred directly to the HCCS Board (board@hopeccs.org) (See KL-AR – Public Complaint Procedure).

If a complaint is not resolved in any step of the complaint process, the complainant may request that it be moved on to the next step in accordance with the established procedure (See KL-AR – Public Complaint Procedure).

When a complaint is made directly to the Board or to an individual Board member, it should be referred to KL-AR – Public Complaint Procedure as appropriate. A Board member shall not attempt to consider such complaints in any official capacity acting as an individual Board member.

The administrator/principal shall develop administrative regulations designed to encourage the timely resolution of complaints while providing a system of review which will allow both the complainant and other affected parties an opportunity to be heard.

If the complaint alleges discrimination pursuant to ORS 659.850, OAR 581-021-0045, OAR 581-021-0046, or OAR 581-021-0047 (Discrimination), the complainant is encouraged to utilize the complaint process in AC-AR - Discrimination Complaint Procedure.

END OF POLICY

Legal Reference(s):

[ORS 192.660](#)
[ORS 338.115](#)

[ORS 339.303](#)
[ORS 659.852](#)

[OAR 581](#)-021-0570

Anderson v. Central Point Sch. Dist., 746 F.2d 505 (9th Cir. 1984).
Connick v. Myers, 461 U.S. 138 (1983).

Cross Reference(s):

AC - Nondiscrimination